

HOUSE No. 233

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to children's advocacy centers and the Massachusetts children's alliance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>1/15/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>4/15/2025</i>

HOUSE No. 233

By Representative Finn of West Springfield, a petition (accompanied by bill, House, No. 233) of Michael J. Finn relative to children's advocacy centers and the Massachusetts children's alliance. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 161 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to children's advocacy centers and the Massachusetts children's alliance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws, as appearing in the 2020 Official Edition, are hereby amended by
2 inserting after chapter 220 the following chapter:-

3 CHAPTER 220A

4 MASSACHUSETTS CHILDREN'S ALLIANCE

5 Section 1. As used in this chapter the following words shall, unless the context clearly
6 requires otherwise, have the following meanings:-

7 "Accreditation", the process in which certification of competency, authority, or credibility
8 is presented by national or state level standards to ensure effective, efficient and consistent
9 delivery of services by a children's advocacy center.

10 “Alliance”, Massachusetts Children’s Alliance.

11 "Children's Advocacy Center", a child-focused, trauma-informed, facility-based program
12 in which a multidisciplinary team with representatives from law enforcement, child protection,
13 prosecution, mental health, forensic interviewing, medical, and victim advocacy disciplines
14 collaborate to offer the best response to child victims of maltreatment. Children’s advocacy
15 centers assist in the response to allegations of child sexual abuse, severe physical abuse and
16 exploitation of children. The multidisciplinary team collaborates to interview children, meet with
17 a child's non-offending parents, guardians, caregivers, and family members, and to coordinate a
18 streamlined, victim-focused response including investigation and provision of necessary services
19 to ensure children can heal. A children’s advocacy center response facilitates efficient collection
20 and sharing of information, improves timely evidence gathering, enhances communication
21 among agencies involved, and broadens the knowledge base from which protective and
22 investigative decisions are made. Children’s advocacy centers may be private nonprofit
23 organizations or based within hospitals, district attorney’s offices, or other governmental entities.

24 “Center,” Children’s Advocacy Center.

25 "Forensic interview", an interview of a child victim of maltreatment by a forensic
26 interviewer who meets or exceeds national training standards. Forensic interviews are conducted
27 in an unbiased, developmentally appropriate, culturally sensitive, and fact-finding manner to
28 obtain accurate information and support the best outcome for children. Whenever practical,
29 members of the multidisciplinary team involved in the response shall observe the interview,
30 which shall be electronically recorded.

"Massachusetts Children's Alliance", the statewide membership organization that serves as a funding source to ensure children's advocacy centers have the necessary fiscal resources to properly and effectively respond to child victims. The alliance engages member children's advocacy centers in an accreditation process which meets or exceeds standards set by the national children's alliance, by collecting and sharing of data, and by providing training, leadership, and technical assistance to existing and emerging children's advocacy centers in the commonwealth. The alliance ensures through contractual relationship that children's advocacy centers meet or exceed national standards for operating and these standards shall include:

1. multidisciplinary teams that include representation from law enforcement, prosecutors, child protective services, the medical and mental health fields, and victim advocacy;

2. services that are cultural sensitivity and able to meet the needs of the diverse population of the commonwealth;

3. forensic interviews that are neutral, fact-finding, and avoid duplicative interviewing;

4. victim support and advocacy for children and caregivers, including appropriate counseling, legal, and medical services or referrals;

5. access to medical evaluations;

6. access to mental health services;

7. a formal case review process;

8. a case tracking, monitoring, and outcomes process;

9. organizational capacity;

51 10. a child-focused setting that is comfortable, safe, and private; and

52 11. any additional necessary standards.

53 "Multidisciplinary team", a group of professionals working collaboratively under a
54 written protocol, who represent various disciplines to assure the most effective and coordinated
55 response to child maltreatment for every child. A children's advocacy center's multidisciplinary
56 team shall include professionals involved in the coordination, assessment, investigation, and
57 prosecution of child abuse cases, including the children advocacy center's staff, participating law
58 enforcement agencies, the district attorney, and the department of children and families. A
59 multidisciplinary team shall include professionals involved in the delivery of services, including
60 medical and mental health services, to victims of child maltreatment and their non-offending
61 family members.

62 "National Children's Alliance", the national, professional membership organization that
63 provides standards for accreditation of children's advocacy centers and is dedicated to helping
64 local communities respond to allegations of child abuse in an effective and efficient manner.

65 Section 2. There is hereby created a body politic and corporate to be known as the
66 Massachusetts Children's Alliance for the purpose of providing leadership, innovative
67 programming, training, technical assistance, data collection, and capacity building to meet local,
68 state, and national requirements for children's advocacy centers. The alliance may contract with
69 state and federal entities to ensure that children's advocacy centers are equipped to meet the
70 needs of child victims of abuse. The alliance may receive and disburse any funds, grants, and
71 services in furtherance of its functions.

Section 3. Children’s advocacy centers shall provide a formal, integrated, culturally competent and multidisciplinary response to child maltreatment for the benefit of children and their non-offending family members. The centers shall expedite a streamlined process by means of a prompt, coordinated, child focused, fact finding forensic multidisciplinary team interview and assessment which obtains the information required by involved agencies and ensures children are not further traumatized by the systems intended to aid. Moreover, this collaborative process shall ensure that professionals have the necessary information to provide services in the best interest of the child. The centers shall offer comprehensive services to address the mental health and medical needs of children. The centers shall continuously work towards the improvement of prevention strategies and intervention responses.